



I, **Jared Naidoo**, duly appointed in terms of Section 16(1) of the Occupational Health and Safety Act 85 of 1993 being appointed as the Registered Employer of Landscapers INC, do hereby in terms of Section 16(2) of the Occupational Health and Safety Act 85 of 1993 appoint you **Anthony Guruvadu** as the responsible assigned appointee for the Company.

This appointment is effective as from the _____ and will remain in force until revoked by myself. You are to ensure that the requirements of the OHSACT are complied with.

Please report all deviations and areas on non-compliance, which you cannot rectify to myself.

Assigned Appointees Responsibilities

You are required to perform the following, but not limited to:

1. You are to ensure that all risks are minimised that area associated with our business as stipulated in the Occupational Health and Safety Act.
2. There will be no compromise on HSE.
3. You are to ensure that all the necessary appointments are made as required in terms of the OHSACT, and that they remain valid.
4. You are to ensure that HSE Functions are carried out in terms of the OHSACT.
5. In the event of an emergency situation, it will be required from you to act as the appointed Emergency Controller and take full charge of the situation.
6. You are to ensure Health and Safety Inspections are carried out monthly and areas not in compliance are to be attended to without delay by means of a Remedial Action Plan.
7. You are to ensure that all matters concerning Responsible Care including the submission of the Annual QIP is complied with and is sent to CAIA.
8. Comply with SQAS Africa and ISO 9001-2015 requirements.

Section 16(1) of the OHSACT

Date

Acceptance of Appointment:

I, _____, the undersigned, I.D Number

_____do hereby accept this appointment and acknowledge that I am fully aware of and understand the duties, functions and responsibilities relevant to it.

Signature of Appointee

Date

Section 16(2) Appointment as a Responsible Person to enforce the OHS Act

Without minimizing your total scope of responsibility as a Delegated Responsible Person, your duties include, but are not limited to:

- You shall enforce the observance of the Occupational Health and Safety Act and its Regulations in the workplace (A copy is available on the premises).
- Take all reasonable measures to ensure the Health and Safety of employees and ensure proper discipline at the workplace.
- Ensure the control, management and direction of the employees and contractors under your responsibility.
- Instruct all personnel in the use of tools and equipment and inform them of the hazards of their work and workplace.
- Be responsible for the safe installation, maintenance and repair and operation of all machinery.
- Stop the working of any machine, which is in a dangerous condition.
- In the event of any incident or accident you will be responsible to follow it up as per the required procedure in the Act.
- Appoint subordinate supervisors, inspectors or competent persons to assist you in the discharge of your duties.
- As the Responsible Person, you acknowledge that by delegating these duties, you are not relieved of the responsibility and accountability of ensuring that all delegated functionaries comply with the legislative requirements.
- Spend at least 1 hour a day on safety audits.
- Strive to continuous health and safety improvement in the workplace.
- Ensure that the details of the subordinates you appoint to assist in your duties, are kept up to date at all times at **Landscapers INC.**

Acceptance of Appointment

I, _____, ID Number _____ hereby confirm my understanding of the duties involved in being appointed as the 16(2) Responsible Person in my workplace and accept the appointment.

Signed : _____

Date : _____